Inc., 149 Vt. 451, 546 A. 2d 196 (punitive damages of $380,000 based on compensatory damages of $187,500), cert. denied, 487 U. S. 1236 (1988).

The Court holds today that the Excessive Fines Clause of the Eighth Amendment places no limits on the amount of punitive damages that can be awarded in a suit between private parties. That result is neither compelled by history nor supported by precedent, and I therefore respectfully dissent from Part II of the Court's opinion. I do, however, agree with the Court that no due process claims—either procedural or substantive—are properly presented in this case, and that the award of punitive damages here should not be overturned as a matter of federal common law. I therefore join Parts I, III, and IV of the Court's opinion. Moreover, I share JUSTICE BRENNAN's view, *ante*, at 280–282, that nothing in the Court's opinion forecloses a due process challenge to awards of punitive damages or the method by which they are imposed, and I adhere to my comments in *Bankers Life & Casualty Co.* v. *Crenshaw*, 486 U. S. 71, 86–89 (1988) (opinion concurring in part and concurring in judgment), regarding the vagueness and procedural due process problems presented by juries given unbridled discretion to impose punitive damages.

I

Before considering the merits of BFI's Eighth Amendment claim, two preliminary questions must be addressed. First, does the Excessive Fines Clause apply to the States through the Due Process Clause of the Fourteenth Amendment? Second, is a corporation such as BFI protected by the Excessive Fines Clause?

A

The award of punitive damages against BFI was based on Vermont law. See 845 F. 2d 404, 409 (CA2 1988). Almost 100 years ago, the Court held that the Eighth Amendment did not apply to the States. See *O'Neil* v. *Vermont*, 144 U. S. 323, 332 (1892). See also *Pervear* v. *Commonwealth*,

5 Wall. 475 (1867). But 13 years before *O'Neil*, the Court had applied the Eighth Amendment's ban on cruel and unusual punishments to a Territory. See *Wilkerson* v. *Utah*, 99 U. S. 130 (1879) (holding that execution by firing squad was not prohibited by the Eighth Amendment). In *Louisiana ex rel. Francis* v. *Resweber*, 329 U. S. 459, 462 (1947), the Court assumed, without deciding, that the Eighth Amendment applied to the States. Any confusion created by *O'Neil*, *Wilkerson*, and *Francis* was eliminated in *Robinson* v. *California*, 370 U. S. 660, 666–667 (1962), in which the Court, albeit without discussion, reversed a state conviction for the offense of narcotics addiction as constituting cruel and unusual punishment and being repugnant to the Fourteenth Amendment. Since *Robinson*, the Cruel and Unusual Punishments Clause has been regularly applied to the States, most notably in the capital sentencing context. In addition, the Court has assumed that the Excessive Bail Clause of the Eighth Amendment applies to the States. See *Schilb* v. *Kuebel*, 404 U. S. 357, 365 (1971). I see no reason to distinguish one Clause of the Eighth Amendment from another for purposes of incorporation, and would hold that the Excessive Fines Clause also applies to the States.

B

In the words of Chief Justice Marshall, a corporation is "an artificial being, invisible, intangible, and existing only in contemplation of law." *Dartmouth College* v. *Woodward*, 4 Wheat. 518, 636 (1819). As such, it is not entitled to "'purely personal' guarantees" whose "'historic function' . . . has been limited to the protection of individuals." *First National Bank of Boston* v. *Bellotti*, 435 U. S. 765, 779, n. 14 (1978). Thus, a corporation has no Fifth Amendment privilege against self-incrimination, *Wilson* v. *United States*, 221 U. S. 361 (1911), or right to privacy, *United States* v. *Morton Salt Co.*, 338 U. S. 632 (1950). On the other hand, a corporation has a First Amendment right to freedom

of speech, *Virginia Pharmacy Bd.* v. *Virginia Citizens Consumer Council, Inc.*, 425 U. S. 748 (1976), and cannot have its property taken without just compensation, *Penn Central Transportation Co.* v. *New York City*, 438 U. S. 104 (1978). A corporation is also protected from unreasonable searches and seizures, *Marshall* v. *Barlow's, Inc.*, 436 U. S. 307 (1978), and can plead former jeopardy as a bar to a prosecution, *United States* v. *Martin Linen Supply Co.*, 430 U. S. 564 (1977). Furthermore, a corporation is entitled to due process, *Helicopteros Nacionales de Colombia* v. *Hall*, 466 U. S. 408 (1984), and equal protection, *Metropolitan Life Ins. Co.* v. *Ward*, 470 U. S. 869 (1985), of law.

Whether a particular constitutional guarantee applies to corporations "depends on the nature, history, and purpose" of the guarantee. *First National Bank of Boston, supra*, at 779, n. 14. The payment of monetary penalties, unlike the ability to remain silent, is something that a corporation can do as an entity, and the Court has reviewed fines and monetary penalties imposed on corporations under the Fourteenth Amendment at a time when the Eighth Amendment did not apply to the States. See *Waters-Pierce Oil Co.* v. *Texas*, 212 U. S. 86, 111–112 (1909). See also *St. Louis I. M. & S. R. Co.* v. *Williams*, 251 U. S. 63, 66–67 (1919). If a corporation is protected by the Due Process Clause from overbearing and oppressive monetary sanctions, it is also protected from such penalties by the Excessive Fines Clause. See *Whitney Stores, Inc.* v. *Summerford*, 280 F. Supp. 406, 411 (SC) (three-judge court) (entertaining Eighth Amendment challenge by corporation to fine for violation of Sunday closing laws), summarily aff'd, 393 U. S. 9 (1968).

II

Language in *Ingraham* v. *Wright*, 430 U. S. 651 (1977), and *Ex parte Watkins*, 7 Pet. 568 (1833), suggests that the *entire* Eighth Amendment is confined to criminal prosecutions and punishments. But as the Court correctly acknowl-

edges, *ante*, at 262–263, and n. 3, that language is not dispositive here.

In *Ingraham*, the Court held that the Cruel and Unusual Punishments Clause of the Eighth Amendment does not apply to disciplinary corporal punishment at a public school. Because the Excessive Fines Clause was not at issue in *Ingraham*, the Court's statement that the "text of the [Eighth] Amendment suggests an intention to limit the power of those entrusted with the criminal-law function of government," 430 U. S., at 664, is not controlling. The similar statement in *Ex parte Watkins*, that the Eighth Amendment "is addressed to courts of the United States exercising criminal jurisdiction," 7 Pet., at 573–574, is dictum, for the Court there held only that it did not have appellate jurisdiction to entertain a challenge, by way of a writ for habeas corpus, to criminal fines imposed upon a defendant: "[T]his Court has no appellate jurisdiction to revise the sentences of inferior courts in criminal cases; and cannot, even if the excess of the fine were apparent on the record, reverse the sentence." *Id.*, at 574. There is another reason not to rely on or be guided by the sweeping statements in *Ingraham* and *Ex parte Watkins*. Those statements are inconsistent with the Court's application of the Excessive Bail Clause of the Eighth Amendment to civil proceedings in *Carlson* v. *Landon*, 342 U. S. 524, 544–546 (1952) (immigration and deportation). See *United States* v. *Salerno*, 481 U. S. 739, 754 (1987) (recognizing that *Carlson* "was a civil case"). In sum, none of the Court's precedents foreclose application of the Excessive Fines Clause to punitive damages.

III

The history of the Excessive Fines Clause has been thoroughly canvassed in several recent articles, all of which conclude that the Clause is applicable to punitive damages. See Boston, Punitive Damages and the Eighth Amendment: Application of the Excessive Fines Clause, 5 Cooley L. Rev.